

**IN THE PESHAWAR HIGH COURT,
BANNU BENCH
(Judicial Department)**

WP No.187-B/2026

Syed Muhammad

Vs

Khan Bahadur alias Fazal-ur-Rehman, etc.

JUDGMENT

Date of hearing: **01.06.2026**

For petitioner(s): **Mr. Rizwan Ullah Wazir Advocate**

MUHAMMAD TARIQ AFRIDI, J.- This writ petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, calls in question the legality and validity of the judgment and order dated 17.02.2026 passed by the learned Additional District Judge-V, Bannu, whereby the civil revision preferred by the petitioner was dismissed, and the order dated 28.10.2024 passed by the learned Civil Judge-XIII, Bannu, returning the plaint under Order VII, Rule 10 CPC for its presentation before the Court of competent jurisdiction, was maintained.

2. Briefly stated, the facts of the case leading to the filing of this writ petition are that plaintiff, Syed Muhammad (hereinafter referred to as the petitioner), instituted a suit for declaration and permanent mandatory injunction against defendants, Khan Bahadur and others (hereinafter referred to as the respondents), contending that suit Plot No.1779, measuring 05 marlas, situated in Jalozei Housing Scheme, Tehsil Pabbi, District Nowshera, was originally allotted to one Aman Ullah Khan vide allotment letter dated 18.06.2013, and was subsequently purchased by the petitioner through a sale deed dated 13.08.2013. It was averred

that respondent No.2, Nasib Noor, who is the brother of the petitioner and was jointly engaged in property business with respondent No.1, obtained the original documents of the plot from the petitioner and handed them over to respondent No.1 to be used as security in arbitration proceedings arising out of a business dispute between respondents No.1 and 2. Later on, both respondents claimed that the documents had gone missing, constraining the petitioner to issue a public notice in daily 'Ausaf' dated 14.06.2020 regarding their loss. Subsequently, it was discovered that through arbitration proceedings dated 21.09.2020, 25.09.2020, and 29.09.2020, respondents No.1 and 2 had transferred the suit plot to respondent No.3 without his knowledge, authority or consent. Consequently, the petitioner instituted the suit seeking declaration that the impugned acts were illegal, void ab initio, and ineffective upon his rights, along with cancellation of all subsequent transactions flowing therefrom.

3. Upon appearance, respondent No. 3 contested the claim of the petitioner by filing a written statement, wherein various legal and factual objections were raised. She also filed an application under Order VII, Rule 11 CPC seeking rejection of the plaint on three grounds. Firstly, it was contended that the subject matter of the suit, namely the plot in question, is situated in Jaloza Housing Scheme at Tehsil Pabbi, District Nowshera. Secondly, the transaction relating to the transfer of the suit plot in favour of respondent No. 3 also took place at Peshawar. Thirdly, respondent No. 4, namely the Provincial Housing Authority (PHA), is likewise located at Peshawar. On the basis of these facts, the respondent No. 3 asserted that the Trial Court at Bannu lacked territorial jurisdiction to entertain the suit and, therefore, the plaint was liable to be rejected.

4. Contrarily, the petitioner filed a replication to the said application and contended that the execution of sale deed dated

13.08.2013 and payment of the sale consideration had taken place at District Bannu. It was further asserted that the arbitration proceedings culminating into decisions dated 21.09.2020, 26.09.2020, and 29.09.2020, were also conducted and reduced into writing at District Bannu. The petitioner also contended that Aman Ullah Khan, the original owner / allottee with whom the sale deed dated 13.08.2013 was executed, is also a resident of District Bannu. On the strength of these facts, the petitioner contended that part of the cause of action had arisen within the territorial limits of District Bannu and, therefore, the Trial Court at Bannu was well within its jurisdiction to entertain and adjudicate the lis.

5. After hearing the arguments and examining the material available on record, the Trial Court came to the conclusion that it had no jurisdiction to entertain and adjudicate upon the matter. Consequently, vide order dated 28.10.2024, the plaint was returned under ORDER VII Rule 10 CPC for presentation before the Court of competent jurisdiction. Feeling aggrieved, the petitioner preferred a civil revision before the learned Additional District Judge-V, Bannu; however, it was dismissed vide judgment and order dated 17.02.2026. Hence, this petition.

6. Arguments heard. Record perused.

7. Admittedly, the suit property is situated in Jaloza Housing Scheme at Tehsil Pabbi, District Nowshera. Section 16 CPC provides that suits for recovery of immovable property or determination of any right or interest therein shall be instituted in the Court within whose local territorial jurisdiction such property is situated. The scheme of the provision leaves no room for controversy that in matters concerning immovable property, jurisdiction is to be determined with reference to the situs of the property. A Court outside those territorial limits cannot assume jurisdiction merely on the basis of ancillary facts, when the

principal controversy relates to recovery or determination of any right or interest in immovable property.

8. A conjoint reading of Sections 16 and 20 CPC reveals that where the dispute pertains to any right or interest in immovable property, the special provision of Section 16 CPC prevails, and the suit is to be instituted before the Court within whose territorial jurisdiction the property is situated. Section 20 CPC, being general in nature, cannot override the mandate of Section 16 CPC. In the present case, the owner resides in District Peshawar, the suit property is situated in Jalozai Housing Scheme at Tehsil Pabbi, District Nowshera, and the office of the Provincial Housing Authority, Khyber Pakhtunkhwa situated at Peshawar maintains the official record pertaining to allotment and transfer of plots, including the disputed plot situated at Jalozai Housing Scheme. The alleged fraudulent act of defendant No.1, who is merely the petitioner's brother, resident of District Bannu, and not owner of the property, does not create any cause of action under Section 20(c) CPC nor confer jurisdiction upon the Court at Bannu. Since the controversy essentially relates to rights in immovable property, only the Court within whose territorial limits the property is situated has jurisdiction to adjudicate the matter.

9. Learned counsel for the petitioner laid considerable emphasis upon the alleged execution of the sale deed dated 13.08.2013, payment of sale consideration, and subsequent arbitration proceedings, all allegedly took place at Bannu; however, in view of the foregoing, these events do not advance the petitioner's case for the simple reason that the claim substantially relates to rights and interests in immovable property situated at Tehsil Pabbi, District Nowshera.

10. In Haji Abdul Malik and 10 others v. Muhammad Anwar Khan and 26 others (2003 SCMR 990), the august Supreme Court of Pakistan held that where a suit involves a

dispute relating to rights or interests in immovable property, it is maintainable only before the Court within whose territorial jurisdiction the property is situated. It was further held that where the relief claimed does not relate to any right or interest in the property and is confined to an ancillary matter, the suit may be instituted at a place where the cause of action wholly or partly arose.

11. In these circumstances, the learned Trial Court rightly returned the plaint under Order VII, Rule 10 CPC for presentation before the Court of competent jurisdiction, and the said order was correctly upheld by the impugned judgment. Both the Courts below have recorded findings which are in accordance with the settled principles governing territorial jurisdiction in suits relating to immovable property. The jurisdiction of this Court under Article 199 of the Constitution is not meant to re-examine findings which are otherwise in accordance with law unless the impugned orders are shown to suffer from a jurisdictional defect, illegality, or material irregularity. No such infirmity has been pointed out in the present case.

12. Consequently, finding no ground warranting interference in constitutional jurisdiction, this petition is dismissed in limine. However, it is clarified that the petitioner shall be at liberty to approach the competent Court at District Peshawar or District Nowshera, as the case may be, for presentation of the plaint, after its return by the learned Trial Court at Bannu, in accordance with law.

Announced

01.06.2026

-Sd-
Judge

Date of hearing and announcement of
judgment01.06.2026

Date of preparation and signing of
judgment.....09.06.2026

(Ghafoor Zaman)

(S.B.) Hon'ble Mr. Justice Muhammad Tariq Afsar

SCANNED
11 JUN 2026
Court Rooms

10/6/2026